jurisprudence met in such systems of Natural Law as were fashionable in the eighteenth century, the *universitas* was lowered to the rank of the *societas*, or (but this was the same process) the *societas* was raised to the rank of the *universitas*[1]. Both alike exhibited a certain unity in plurality; both alike might be called 'moral persons'; but in the one case as in the other this personality was to be thought of as a mere labour-saving device, like stenography or the mathematician's symbols. What we may call the Bracket Theory or Expansible Symbol Theory of the Corporation really stands in sharp contrast with the Fiction Theory as Savigny conceived it, though sometimes English writers seem to be speaking of the one and thinking of the other. The existing corporators, who in the one scheme are mere guardians for a somewhat that the State has instituted, become in the other scheme the real 'subjects' of those rights and duties that are ascribed to the corporation, though legal art usually keeps these 'subjects' enclosed within a bracket. However, despite this tendency of a 'natural' jurisprudence—a tendency which seems to have left an abiding mark in the legal terminology of Scotland—the Romanists of Germany had been holding fast the doctrine that the *universitas* is, while the *societas* is not, a person, when the joint-stock company, a new power in the theoretic as in the economic world, began to give trouble. That the *Aktiengesellschaft* was a corporation was generally admitted; but of all corporations a joint-stock company is that which seems to offer itself most kindly to the individualistic analyst. When all is said and done, and all due praise has been awarded to the inventors of a beautiful logarithm, are not these shareholders, these men of flesh and blood, the real and only sustainers of the company's rights and duties? So great a Romanist as Ihering[2] trod this 'individualistic' or 'collectivistic' path, and in America where law schools flourish, where supreme courts are many and the need for theory is more urgent than it is in England, highly interesting attempts have been made to dispel the Fiction, or rather to open the Bracket and find therein nothing but contract-bound men[3]. Contract, that greediest of legal categories,

[1] Gierke, Johannes Althusius, 103.

[2] See especially Geist des röm. Rechts, vol. III., p. 343.

[3] Dissatisfaction with the Fiction—or, as Americans sometimes say, with 'the Entity'—is expressed in some well-known text-books, e.g., Taylor, Law of Private Corporations, § 60; Morawetz, Law of Private Corporations, ch. I.